

26PDUD01363 26PDUD01363

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Case Number: 26PDUD01363 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

MOTION FOR SUMMARY JUDGMENT

Los

Angeles Superior Court Case # 26PDUD01363

MP: Defendant Omayra Mangual

RP: No opposition received (oral opposition
permitted for UD action)

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

On May 4, 2026, Glen Louise, LLC ("Plaintiff") filed an Unlawful Detainer Complaint against Omayra Mangual ("Defendant") regarding the premises located at 308 N. Louise Street, #2, Glendale, CA 91206. The parties entered into a written lease agreement on December 10, 2021. Defendant was served with a 3-day notice to pay rent or quit on March 26, 2026, which expired on March 31, 2026. Plaintiff seeks possession of the premises, costs and reasonable attorney's fees, past-due rent of \$3,090.33, forfeiture of the agreement, and damages at \$51.50 per day from April 1, 2026.

MOTION

ON CALENDAR:

On August 4, 2026, Defendant (a self-represented litigant) filed a Motion for Summary Judgment. Pursuant to CRC Rule 3.1351(b), opposition and reply briefs to a motion for summary judgment may be made orally at the time of the hearing.

If a party seeks to have a written opposition considered in advance of the hearing, the written opposition must be filed and served on or before the court day before the hearing; the court may consider a written opposition filed later. (CRC Rule 3.1351(c).)

LEGAL

STANDARD:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) C.C.P. § 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the

initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (C.C.P. § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

ANALYSIS:

Defendant moves for summary judgment on the Complaint, arguing the following Issues: (1) the three-day notice on which the Complaint is based is void because it overstates the rent due; and (2) the verified Complaint falsely alleges that the tenancy is exempt from the Tenant Protection Act of 2019 (Civil Code, §§ 1946.2, 1947.12), when Plaintiff’s own written lease affirmatively states that the tenancy is subject to that Act.

A. Issue 1 – The Three-Day Notice

C.C.P. § 1161(2) states:

A tenant of real property, for a term less than life, or the executor or administrator of the tenant's estate heretofore qualified and now acting or hereafter to be qualified and act, is guilty of unlawful detainer: ...

2. When

the tenant continues in possession, in person or by subtenant, without the permission of the landlord, or the successor in estate of the landlord, if applicable, after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available

to receive the payment (provided that, if the address does not allow for personal delivery, then it shall be conclusively presumed that upon the mailing of any rent or notice to the owner by the tenant to the name and address provided, the notice or rent is deemed received by the owner on the date posted, if the tenant can show proof of mailing to the name and address provided by the owner), or the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution (provided that the institution is located within five miles of the rental property), or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon the tenant and if there is a subtenant in actual occupation of the premises, also upon the subtenant.

The

notice may be served at any time within one year after the rent becomes due. In all cases of tenancy upon agricultural lands, if the tenant has held over and retained possession for more than 60 days after the expiration of the term without any demand of possession or notice to quit by the landlord or the successor in estate of the landlord, if applicable, the tenant shall be deemed to be holding by permission of the landlord or successor in estate of the landlord, if applicable, and shall be entitled to hold under the terms of the lease for another full year, and shall not be guilty of an unlawful detainer during that year, and the holding over for that period shall be taken and construed as a consent on the part of a tenant to hold for another year.

(C.C.P. § 1161(2).)

Pursuant

to section 1161(2), a “valid three-day pay rent or quit notice is a prerequisite to an unlawful detainer action. [Citations.] Because of the summary nature of an unlawful detainer action, a notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements. [Citation.]” (Bevill v. Zoura (1994) 27 Cal.App.4th 694, 697 [citations omitted].) This subsection requires that the three-day notice contain “the amount which is due” and a “notice which demands rent in excess of the amount due does not satisfy this requirement.” (Id.) “This rule ensures that a landlord will not be entitled to regain possession in an unlawful detainer action unless the tenant has had the opportunity to pay the delinquent rent.” (Id.)

Defendant

provides the following material facts regarding Issue 1 (rent

overstatement). Defendant occupies the residential

premises at 308 N. Louise Street, #2 (the “Premises”) under a written lease

dated December 10, 2021, at a monthly rent of \$1,450.00 at the time. (Def.’s Fact 1.) On March 6, 2026, Plaintiff served Defendant

with a Three-Day Notice to Pay Rent or Quit demanding \$3,090.33 (“First

Notice”). (Id. at 2.) On March 26, 2026, Plaintiff served

Defendant with a second Three-Day Notice to Pay Rent or Quit demanding the same

amount (“Second Notice”). (Id. at

3.) The Second Notice states on its

face: “THIS NOTICE SUPERSEDES ALL PREVIOUS NOTICES.” (Id. at 4.) Both notices itemize a January 2026 “Amount

Due” of \$0.33. (Id. at 5.) Defendant paid the January 2026 rent in full

and no January 2026 balance, including the \$0.33, was owed. (Id. at 5.) Defendant contends the Second Notice demanded rent she did not owe. (Id. at

6.)

Both the March 6, 2026 and

March 26, 2026 Notices seek the following: (1) \$0.33 for the 1/1/2026 –

1/31/2026 rental period; (2) \$1,545.00 for the 2/1/2026 – 2/28/2026 rental

period; and (3) \$1,545.00 for the 3/1/2026 – 3/31/2026 rental period, for a

total of \$3,090.33. (Def.’s Decl., Ex.

A.)

With respect to the January

2026 rent, Defendant provides a text message exchange (from “Diana” at phone

number +1(323)613-3958) showing the \$1,637.70 amount she was directed to pay

(which was \$1,545 in January’s rent + \$92.70 for January’s late fee) by January

21, 2026 and a check showing that Defendant made a check out to Glen Louise,

LLC for \$1,637.70 dated January 17, 2026.

(Def.’s Decl., Ex. A.)

Defendant has upheld her

initial burden in showing that she paid the January 2026 rent as requested,

such that the \$0.33 rental amount requested in both Notices for January 2026

was overstated.

Thus, the burden shifts to

Plaintiff to raise a triable issue of material fact. The Court is not in receipt of a written

opposition. However, as noted above,
this is an unlawful detainer action such that Plaintiff may present oral
arguments at the hearing.

Based on Defendant's moving
papers, the Court is inclined to grant the motion on Issue 1.

B. Issue 2 – The Tenant Protection Act of 2019

Defendant
provides the following material facts regarding Issue 2 (Tenant Protection
Act). The Premises are located within a
multi-unit residential building (approximately 20 units) constructed in or
about 1949. (Def.'s Fact 8.) Defendant has continuously and lawfully occupied
the Premises for more than 12 months. (Id.
at 9.) Defendant contends by reason of the building's age, size, and residential
use, and Defendant's length of occupancy, the tenancy is subject to Civil Code §§
1946.2 and 1947.12 and does not fall within any statutory exemption under
sections 1946.2(e) or 1947.12(d). (Id.
at 10.)

Section
35 of the parties' lease ("Assembly Bill 1482 Disclosures") directs the parties
to "Check the applicable provision" and presents two alternatives, wherein: (a)
Plaintiff left blank provision stating the property is "not subject" to
Sections 1947.12 and 1946.2, and instead (b) checked the provision stating that
California law limits rent increases (§ 1947.12) and requires a statement of
cause to terminate (§ 1946.2). (Id.
at 11-12.) Specifically, this section
states:

[X] California law limits the amount your rent can be
increased. See Section 1947.12 of the Civil Code for more information.
California law also provides that after all of the tenants have continuously
and lawfully occupied the property for 12 months or more or at least one of the
tenants has continuously and lawfully occupied the property for 24 months or
more, a landlord must provide a statement of cause in any notice to terminate a
tenancy. See Section 1946.2 of the Civil Code for more information.

(Def.'s

Decl., Ex. C [Lease at § 35].)

Plaintiff's

verified Complaint alleges at Item 7a, under penalty of perjury, that the tenancy is "not subject to the Tenant Protection Act of 2019," stating the claimed exemption as "GRSO." (Def.'s Fact 13.) Defendant contends that "GRSO" is not a recognized statutory exemption under Civil Code section 1946.2(e), and the City of Glendale does not maintain an independent rent-control ordinance supplying such an exemption. (Id. at 14.) He claims because the tenancy is covered, the written notice was required to state just cause for termination, but the notice stated none. (Id. at 15.)

Defendant has upheld her initial burden in showing that based on the Lease agreement, her tenancy at the subject property is subject to the Tenant Protection Act. Defendant entered the Lease in December 2021, such that her tenancy exceeded 12 months. Civil Code, § 1946.2(e) states that the section does not apply for certain types of residential properties, such as transient/tourist hotel occupancy; housing accommodations in a nonprofit hospital, etc.; dormitories; etc. Plaintiff's Complaint and the Lease agreement do not state that the subject property qualifies for an exemption under this subsection. Furthermore, Plaintiff generally cited the GRSO in the Complaint, but did not provide any specific citation, quote any provision, or show how it provides an exemption to the Tenant Protection Act.

Thus, the burden shifts to Plaintiff to raise a triable issue of material fact. The Court is not in receipt of a written opposition. However, as noted above, this is an unlawful detainer action such that Plaintiff may present oral arguments at the hearing.

Based on Defendant's moving papers, the Court is inclined to grant the motion on Issue 2.

RULING:

In

the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant

Omayra Mangual's Motion for Summary Judgment came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the Court, being fully advised in the premises, did then and there rule as follows:

THE MOTION FOR SUMMARY JUDGMENT IS GRANTED.

DEFENDANT IS ORDERED TO LODGE WITH THE COURT AND SERVE ON PLAINTIFF A PROPOSED JUDGMENT WITHIN TEN (10) DAYS.

THE CASE MANAGEMENT CONFERENCE SCHEDULED SEPTEMBER 11, 2026 IS TAKEN OFF-CALENDAR.

DEFENDANT TO PROVIDE NOTICE.

IT IS SO ORDERED.